

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Cassandra Watson	Team: Team # 5	CCRB Case #: 201017030	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 12/15/2010 1:00 AM	Location of Incident: 120th Precinct stationhouse	Precinct: 120	18 Mo. SOL 6/15/2012	EO SOL 6/15/2012	
Date/Time CV Reported Wed, 12/15/2010 2:00 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Wed, 12/15/2010 2:00 AM		

Complainant/Victim	Type	Home Address
[REDACTED]	[REDACTED]	[REDACTED]

Witness(es)	Home Address
[REDACTED]	[REDACTED]

Subject Officer(s)	Shield	TaxID	Command
1. POM Omar Birchwood	21286	945512	120 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Omar Birchwood	Discourtesy: PO Omar Birchwood spoke obscenely and/or rudely to § 87(2)(b) [REDACTED]	[REDACTED]
B.POM Omar Birchwood	Abuse: PO Omar Birchwood refused to provide his name and/or shield number to § 87(2)(b) [REDACTED]	[REDACTED]
C.POM Omar Birchwood	Force: PO Omar Birchwood used physical force against § 87(2)(b) [REDACTED]	[REDACTED]

Case Summary

On December 15, 2010, § 87(2)(b) filed a complaint on the CCRB Call Processing System. On December 16, 2010, § 87(2)(b) filed a complaint by phone with the Internal Affairs Bureau and IAB log #10-61750 was generated and forwarded to the CCRB.

On December 15, 2010, at approximately 1:00 a.m., § 87(2)(b) went to the 120th Precinct stationhouse to file a complaint against an unknown correction officer. A black male officer—identified through the investigation as PO Omar Birchwood—called § 87(2)(b) a “bitch” and told her, “Get the fuck out” (Allegation A). PO Birchwood then stated if she did not leave she would be arrested. When § 87(2)(b) requested PO Birchwood’s name and shield number, he refused to provide them and told her to figure it out; however, he flipped his lapel over his badge, preventing her from reading the requested information (Allegation B). PO Birchwood then grabbed § 87(2)(b) by both arms and pushed her out of the stationhouse (Allegation C).

§ 87(2)(b) described the subject officer as a skinny black male who stood 6'0" tall, and provided his name as "Omar." § 87(2)(g)

During a phone conversation on December 22, 2010, § 87(2)(b) expressed that she desired to withdraw her complaint. § 87(2)(b) confirmed that the withdrawal was voluntary and without coercion. § 87(2)(b) requested that the undersigned investigator refrain from sending postal correspondence and refused to sign and return the complaint withdrawal letter. Assistant Supervising Investigator Carlmais Johnson reviewed the recording of the withdrawal on December 27, 2010 and confirmed that it was voluntary and without coercion. § 87(2)(g)

Team: _____

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Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date